

The M.P. Vinirdishta Bhrashta Acharan Nivaran (Grant of Certificate to Prospective Consumers) Rules, 1991

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State of Madhya Pradesh - Act

The M.P. Vinirdishta Bhrashta Acharan Nivaran (Grant of Certificate to Prospective Consumers) Rules, 1991

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The M.P. Vinirdishta Bhrashta Acharan Nivaran (Grant of Certificate to Prospective Consumers) Rules, 1991

Rule

THE-M-P-VINIRDISHTA-BHRASHTA-ACHARAN-NIVARAN-GRANT-OF-CERTIFICATE-TO-PROSPECTIVE-CONSUMERS-RULES-1991 of 1991

Published on 16 January 1992

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The M.P. Vinirdishta Bhrashta Acharan Nivaran (Grant of Certificate to Prospective Consumers) Rules, 1991

Published vide Notification No. F. 15 (4)-89-49-10, M.P Rajpatra (Ashadharan), dated 16-1-1992 at pages 54 (3)-(6)

In exercise of the powers conferred by sub-section (1) of Section 44 read with proviso to Section 30 of the Madhya Pradesh Vinirdishta Bhrashta Acharan Nivaran Adhiniyam, 1982 (No. 36 of 1982), the State Government hereby makes the following rules for applying and granting certificate to prospective consumers of electrical supply in building of the colonies, namely :-

1.

Short title.

- These rules may be called the Madhya Pradesh Vinirdishta Bhrashta Acharan Nivaran (Grant of Certificate of Prospective Consumers) Rules, 1991.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(i)

"Act" means the Madhya Pradesh Vinirdishta Bhrashta Acharan Nivaran Adhiniyam, 1982 (No. 36 of 1982);

(ii)

"Collector" means the Collector of the revenue district of concerning district;

(iii)

"Form" means a form appended to these rules.

3.

Application for Certificate.

- A person who intends to obtain electrical connection in his building in the area of illegal diversion or illegal colonization shall apply in Form-I alongwith an affidavit in Form-II to the Collector within whose jurisdiction, the premises is situated for grant of certificate under the proviso to Section 30 of the Act. The Court-fee Stamp of Rs. 2 shall be affixed on every application.

4.

Enquiry by Collector.

- On receipt of an application under Rule 3, the Collector may get such enquiries made as he may deem fit to satisfy himself that in the public interest there is no objection to provide electrical connection to the said building in the area of illegal diversion or illegal colonization.

5.

Grant of Certificate.

- If the Collector after enquiry if any, under Rule 4, is satisfied that in the public interest there is no objection to provide electrical connection to the said building he shall, for reasons to be recorded in writing, grant the certificate to that effect in Form III subject to such terms, conditions or restrictions as may be specified in such certificate.

6.

Cancellation of Certificate.

- The Collector on his own motion or on information from any source and for reasons to be recorded in writing, may cancel the certificate for contravention of any of the terms, conditions or restrictions of the certificate :

Provided that no certificate shall be cancelled unless an opportunity of being heard is given to the certificate holder.

7.

Maintenance of Register.

- The Collector shall maintain a register in Form-IV wherein shall be entered the full details of the Certificate issued under these rules together with terms, conditions or restrictions subject to which certificate is granted and it shall contain full address of the applicant. The certificate holder shall inform the Collector in case of any change in his address.

Form-I

[See Rule 3]

Form of Application for A Certificate under Rule 3 of Section 30 Of the Madhya Pradesh Vinirdishta Bhrashta Acharan Nivaran (Grant of Certificate to Prospective Consumers) Rules, 1991

To,

The Collector

District.....

I/we request that a certificate be granted to me/us under the Madhya Pradesh Vinirdishta Bhrashta Acharan Nivaran Adhiniyam, 1982 in order to enable me/us to get electrical connections/water supply connection in my/our building, particulars of which are given below :-

(i)

Name of the applicant

(ii)

Present address.

(iii)

Permanent address.

(iv)

Is/are the applicant/applicants a private individual private company/ Public company/firm or association.

(v)

In case applicant is-

(a)

an individual, his nationality ;

(b)

a private company, the nationality of all members of the company alongwith place of registration :

(c)

a public company the nationality of directors of the percentage of share capital held by the Indian nationals alongwith place of incorporation :.....

(d)

a firm or association, the nationality of all the partners of the firm or of the association ;

(e)

a society, full particular thereof ;

(vi)

profession or nature of business of applicant is.....

(vii)

description and address of the house where the electrical connection is required;

(viii)

nature of joint interest, if any.

I/We do hereby declare that the particulars furnished above are correct and I/We am/are ready to furnish any other details as may be required by you.

Yours faithfullySignature.....

Place.....

Dated.....

Name and address of the Applicant.....

Form-II

[See Rule 3]

Affidavit to be Filed Alongwith the Application to the Collector for Obtaining Certificate

I,S/o.....aged.....years.....resident of.....do hereby solemnly affirm on oath as under:-

1. That I have constructed a house on plot No.....of the...(Name of the Society) situated at.....ward..... District.

2. That the said house was completed on the aforesaid plot before the.....19..... That I am the owner of the aforesaid house.

3. [x x x]

[Omitted by Notification No. F. 15(4)-89-XLIX-10, dated 1-7-1992]

4. That I know that the colony in which I have constructed the aforesaid house is in the list of colonies declared illegal by the Government and that if I furnish any wrong information in regard thereto; I shall be responsible therefor under Section 30 of the Madhya Pradesh Vinirdishta Bhrashta Acharan Nivaran Adhiniyam, 1982 (No. 36 of 1982).

5. That I undertake to observe fully and follow whatever orders are passed by the Government on this account in figure and in consequence thereof if my electrical connection is to be discontinued I shall be ready to get the electrical connection disconnected without holding Madhya Pradesh Electricity Board responsible for the same.

6. That aforesaid building is not constructed on any Government/Semi-Government or Municipal Corporation Land.

7. Particulars of the property are as under :-

(1)

Name of the owner Applicant with his full address.

(2)

Description of illegal diversion/illegal colony.

(3)

Name and address of Bhoomi-Swami.

(4)

Description of the Land-

(a)

Village

(b)

Khasra No.

(c)

Area

(5)

Name of the colony.

(6)

Area of the plot.

(7)

Particulars of Municipal Corporation assessment.

(8)

Remarks.

Deponent

Verification

I.....S/o R/o do hereby verify that the contents of para 1 to 6 are true to my personal knowledge and belief. Verified and signed on this day of 19 at.....

Deponent

Form-III

[See Rule 5]

Certificate

No.

dated, the

Certificate under Rule 5 of the Madhya Pradesh Vinirdishta Bhrashta Acharan Nivaran (Grant of Certificate to Prospective Consumers) Rules, 1991.

I, Collector..... hereby certify that in public interest there is no objection in providing electrical connection to the building described hereunder, subject to the terms, conditions or restrictions specified below :-

Description of Property

1. Name of the Village

2. Khasra No.

3. Area

4. Plot/House No.

5. Name of the Colony

6. Name of the Owner of the House.

Terms, Conditions Or Restrictions

.....
.....
.....
.....

Collector.....District(Seal)

Place.....

Dated.....

Form-IV

[See Rule 7]

Form of Register

Serial No.

Date of Application under Rule 3

Full name and address of the person/firm/Company/

Association by whom the application is made

No. and date of certificate

Terms, conditions or restrictions subject to

which the certificate is issued

Date of cancellation and brief reasons therefor

(1)

(2)

(3)

(4)

(5)

(6)

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